

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
AUGUST 26, 2026
8:30 a.m.

3. GARY RIGGS V. ESTHER RIGGS

SFL20210121

This matter is before the court for a five-year dismissal hearing under Code of Civil Procedure section 583.310, which provides, “An action shall be brought to trial within five years after the action is commenced against the defendant.” (Code Civ. Proc., § 583.310.) The action was filed on September 20, 2021. Therefore, the instant hearing is premature by a few weeks.

The court, on its own motion and in the interest of judicial economy, continues the hearing to September 23, 2026. The clerk is directed to serve notice of the continued hearing upon the parties.

TENTATIVE RULING #3: THE COURT, ON ITS OWN MOTION AND IN THE INTEREST OF JUDICIAL ECONOMY, CONTINUES THE HEARING TO 8:30 A.M., WEDNESDAY, SEPTEMBER 23, 2026, IN DEPARTMENT 12. THE COURT CLERK IS DIRECTED TO SERVE NOTICE OF THE CONTINUED HEARING UPON THE PARTIES.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
AUGUST 26, 2026
8:30 a.m.

4. JASMINE CHAVARRI V. JORGE CHAVARRI

25FL1054

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on June 02, 2026, to set child custody and visitation, child support and spousal support, issue an order authorizing the Petitioner to have exclusive control of the marital residence, and award attorney fees. The filing of the RFO prompted the court to refer the parties to a CCRC session set for July 16, 2026.

To date, there is no proof of service in the court's file. Respondent filed no response. Additionally, the court is in receipt of a memorandum from the CCRC counselor indicating that neither party appeared for the CCRC session as scheduled.

Due to the lack of service and participation at CCRC, the court drops the matter from the calendar.

TENTATIVE RULING #4: DUE TO THE LACK OF SERVICE OF THE RFO AND PARTICIPATION AT CCRC, THE COURT DROPS THE MATTER FROM THE CALENDAR.